

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #13	CCRB Case #: 202300117	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/05/2023 10:14 AM	Location of Incident: City Fresh Market (229 Knickerbocker Avenue)	18 Mo. SOL 7/5/2024	Precinct: 83		
Date/Time CV Reported Thu, 01/05/2023 11:16 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/05/2023 11:16 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Hamlet Deleon	17778	958485	083 PCT
2. PO Julian Torres	27585	969398	083 PCT
3. SGT Noemi Sierra	04498	951255	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michael Constantinou	09328	936381	083 PCT
2. PO Rajiv Dasrath	22324	965029	083 PCT
3. PO Khalil Elmeniawy	19263	962376	083 PCT
4. PO Rafed Khan	13930	956796	083 PCT
5. PO Michael Rosado	22365	962752	083 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Noemi Sierra	Abuse: Sergeant Noemi Sierra threatened to remove § 87(2)(b) to the hospital.	A . Substantiated
B . PO Hamlet Deleon	Abuse: Police Officer Hamlet Deleon threatened to remove § 87(2)(b) to the hospital.	B . Substantiated
C . PO Hamlet Deleon	Force: Police Officer Hamlet Deleon used physical force against § 87(2)(b)	C . Unfounded
D . PO Julian Torres	Force: Police Officer Julian Torres used physical force against § 87(2)(b)	D . Unfounded
E . PO Hamlet Deleon	Discourtesy: Police Officer Hamlet Deleon spoke discourteously to § 87(2)(b)	E . Unfounded
F . PO Julian Torres	Abuse: Police Officer Julian Torres threatened to arrest § 87(2)(b)	F . Unable to Determine

Case Summary

On January 5, 2023, § 87(2)(b) filed this complaint with the CCRB over the phone (BR 01).

On January 5, 2023, at approximately 10:14 A.M., after being accused of shoplifting, § 87(2)(b) called 911 and reported that she was assaulted at City Fresh Supermarket, located at 229 Knickerbocker Avenue in Brooklyn. Sergeant Noemi Sierra and Police Officer Hamlet Deleon of the 83rd Precinct threatened to remove § 87(2)(b) to a hospital and requested an ambulance (**Allegations A and B: Abuse of Authority, Threat of Removal to Hospital – Substantiated**). While handcuffing § 87(2)(b) PO Deleon and Police Officer Julian Torres allegedly put a knee or elbow in her back (**Allegations C and D: Force, Physical Force – Unfounded**). PO Deleon allegedly told § 87(2)(b) to “get the fuck out of here” (**Allegation E: Discourtesy, Word – Unfounded**). PO Torres allegedly threatened to arrest § 87(2)(b) if she went back inside City Fresh Supermarket (**Allegation F: Abuse of Authority, Threat of Arrest – Unable to Determine**).

No arrests or summonses resulted from the incident.

Body worn camera (BWC) footage was obtained from nine officers, all from the 83rd Precinct (BR 02-14)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Noemi Sierra threatened to remove § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Hamlet Deleon threatened to remove § 87(2)(b) to the hospital.

Allegation (C) Force: Police Officer Hamlet Deleon used physical force against § 87(2)(b).

Allegation (D) Force: Police Officer Julian Torres used physical force against § 87(2)(b).

Allegation (E) Discourtesy: Police Officer Hamlet Deleon spoke discourteously to § 87(2)(b).

Allegation (F) Abuse of Authority: Police Officer Julian Torres threatened to arrest § 87(2)(b).

§ 87(2)(b) stated (BR 15) that prior to the incident, she went by electric scooter to Green Valley Gourmet Market, located at 268 Knickerbocker Avenue, and bought two cans of tomato paste. She then went to City Fresh Supermarket and purchased a loaf of bread. While checking out, store employees approached her, attempted to block her exit from the store, and accused her of stealing the two cans of tomato paste she had in the basket of her scooter. § 87(2)(b) went outside, called 911, and told the operator that she had been assaulted. PO Deleon, PO Torres, Sgt. Sierra responded to the scene, and PO Deleon went inside to review surveillance footage. Fifteen minutes later, PO Deleon and PO Torres placed § 87(2)(b) in handcuffs. As they did so, they put either their knees or elbows into her back. Sgt. Sierra went to Green Valley Gourmet Market, confirmed § 87(2)(b) had paid for her tomato paste there, returned to the scene, and told PO Deleon and PO Torres to remove § 87(2)(b) handcuffs. PO Deleon told § 87(2)(b) to “get the fuck out of here.” PO Torres told her that if she went back into the City Fresh Supermarket, she would be arrested.

At 01:02 in PO Deleon's first BWC video (**BR 02**), PO Deleon and PO Torres exit their vehicle and approach § 87(2)(b) who is standing in front of the supermarket. She tells the officers that three to four men inside the store assaulted her. She gestures towards the door of the supermarket. PO Deleon asks, "Who?" § 87(2)(b) tells him, "The manager." Between 01:30 and 02:10, store employees tell PO Deleon that § 87(2)(b) did not pay for a can of tomato paste and tried to leave the store. Between 03:30 and 06:25, PO Deleon reviews surveillance footage with the employees. At 06:40, PO Deleon walks out of the City Fresh Market and tells PO Torres that he is going to ask § 87(2)(b) to leave. He then states to PO Torres, "If she don't wanna, she's gonna go to the hospital with her crap." At 07:10, PO Deleon walks outside and hands § 87(2)(b) her scooter with several items in its front basket. He tells her he reviewed the footage and that nobody touched her. § 87(2)(b) shouts at the officers and makes remarks about their race and perceived immigration status. At 08:40, § 87(2)(b) walks eastbound on Knickerbocker Avenue with her scooter. PO Deleon gets into the driver's seat of his marked SUV.

At 00:43 in PO Deleon's second BWC video (**BR 03**), PO Deleon pulls his vehicle forward several feet. § 87(2)(b) walks toward the entrance of City Fresh Market on Knickerbocker Avenue. PO Deleon exits his car and walks towards § 87(2)(b). PO Torres tells § 87(2)(b) she cannot go back inside. § 87(2)(b) asks where her tomato paste is, and PO Deleon says she did not pay for it. At 01:06, PO Deleon tells § 87(2)(b) "You can go or you're going to the hospital." At 01:10, § 87(2)(b) tells the officers she paid for the tomato paste down the street. At 01:25, Sgt. Sierra, who is standing on the sidewalk in front of the supermarket, states, "You can EDP her." PO Deleon states, "Let's EDP her." At 01:32, PO Deleon approaches § 87(2)(b) and grabs her by her left arm with his right hand. He tells her that he is going to call an ambulance. PO Torres and PO Deleon handcuff her arms behind her back. They do not at any point put a knee or elbow into her back. At 11:39, § 87(2)(b) states that she is a JC Penney buyer and that she has a 200-million-dollar budget. At 12:25, Sgt. Sierra exits a marked SUV in front of City Fresh Market and tells § 87(2)(b) that the camera at the store she bought the tomato paste from captured her paying for the tomato paste and that Sgt. Sierra has the receipt. At 13:00, PO Deleon goes into the supermarket, retrieves § 87(2)(b) two cans of tomato paste and puts them back in § 87(2)(b) scooter. At 14:55, Sgt. Sierra tells the officers to remove § 87(2)(b) handcuffs. At 15:08, PO Torres removes § 87(2)(b) handcuffs. An ambulance pulls up in front of the supermarket, and PO Torres waves the ambulance off. § 87(2)(b) returns to her scooter, which is parked in front of the supermarket.

At 00:02 in PO Deleon's third BWC video, PO Deleon exits his vehicle and stands on the driver's side. § 87(2)(b) is with her scooter on the sidewalk in front of City Fresh Market arranging her belongings in her scooter. At 01:50, § 87(2)(b) walks eastbound on Knickerbocker Avenue. PO Deleon gets back into his marked SUV. At no point is any officer captured telling her that she will be arrested if she goes inside City Fresh Supermarket. BWC from the other officers is consistent with PO Deleon's footage (**BR 04-14**).

PO Deleon stated (**BR 16**) that he arrived on scene, he spoke with § 87(2)(b) in front of the address. § 87(2)(b) stated her four assailants were "right there," and gestured toward the supermarket door, which confused PO Deleon because there did not appear to be anyone in the vicinity and there were more than four people behind the door. She then specified that she was assaulted by the manager of the store. PO Deleon went inside and spoke with the employees before reviewing surveillance footage. He stated the footage did not at any point capture the employees assaulting § 87(2)(b) but rather captured her throwing money and paperwork when she was approached by employees about the tomato paste. He considered § 87(2)(b) to be an emotionally disturbed person because of her behavior captured in the footage, her reporting of a false assault to 911, her saying her assailants were "right there," when officers first arrived on scene.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

BWC shows that neither PO Deleon nor PO Torres put their knee or elbow into § 87(2)(b) back, nor does PO Deleon tell her to “get the fuck out of here,” § 87(2)(g). It is therefore recommended that **Allegations C, D, and E** be closed as **unfounded**.

While PO Torres’ and PO Deleon’ third BWC videos capture the moments when § 87(2)(b) alleged PO Torres threatened to arrest her if she went back inside City Fresh Market, the first minute of the interaction in both BWC videos do not contain audio. § 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **unable to determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Torres has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.
- PO Deleon has been a member of service for eight years and has been a subject in two other CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Sierra has been a member of service for 12 years, and has been a subject in one other CCRB complaint and one allegation, which was substantiated.
 - 201806934 involved one substantiated allegation of physical force. The Board recommended Command Discipline A, which the NYPD imposed.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 19, 2023, the New York City Office of the Comptroller has no history of a Notice of Claim being filed in regard to this complaint (**BR 22**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 13

Investigator:	<u>Coleson Smith</u>	<u>Inv. Coleson Smith</u>	<u>10/20/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>10/20/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date